

SUBSTITUTE FOR
HOUSE BILL NO. 4412

A bill to amend 1974 PA 258, entitled
"Mental health code,"
by amending sections 401, 427, 430, 461, 468, 472a, 473, and 475
(MCL 330.1401, 330.1427, 330.1430, 330.1461, 330.1468, 330.1472a,
330.1473, and 330.1475), sections 401, 461, 468, 472a, 473, and 475
as amended by 2018 PA 593, section 427 as amended by 2016 PA 320,
and section 430 as amended by 1995 PA 290.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 401. (1) As used in this chapter, "person requiring
2 treatment" means ~~(a), (b), or (c):~~**any of the following individuals:**
3 (a) An individual who has mental illness, and who, ~~as a result~~
4 **because** of that mental illness, can reasonably be expected ~~within~~
5 **in** the near future to intentionally or unintentionally seriously



1 physically injure ~~himself, herself, the individual's self~~ or
 2 another individual, and who has engaged in an act or acts or made
 3 significant threats that are substantially supportive of the
 4 expectation.

5 (b) An individual who has mental illness, and who, ~~as a result~~
 6 **because** of that mental illness, is unable to ~~attend to those of his~~
 7 ~~or her~~ **meet the individual's** basic physical needs such as **obtaining**
 8 food, clothing, or shelter that must be ~~attended to in order~~ **met**
 9 for the individual to avoid serious harm in the near future, and
 10 who has demonstrated that inability by failing to ~~attend to~~ **meet**
 11 those basic physical needs.

12 (c) An individual who has mental illness, whose judgment is so
 13 impaired by that mental illness, and whose lack of understanding of
 14 the need for treatment has caused ~~him or her~~ **the individual** to
 15 demonstrate an unwillingness to voluntarily participate in or
 16 adhere to **necessary** treatment ~~that is necessary, on the basis of~~
 17 ~~competent clinical opinion,~~ to prevent a relapse or harmful
 18 deterioration of ~~his or her~~ **the individual's** condition, and
 19 presents a substantial risk of significant physical or mental harm
 20 to the ~~individual~~ **individual's self** or others.

21 (2) An individual whose mental processes ~~have been~~ **are**
 22 weakened or impaired by ~~a~~ dementia, an individual with a primary
 23 diagnosis of epilepsy, or an individual with alcoholism or other
 24 drug dependence is not a person requiring treatment. ~~under this~~
 25 ~~chapter unless the individual also meets the criteria specified in~~
 26 ~~subsection (1). An individual described in this subsection may be~~
 27 ~~hospitalized under the informal or formal voluntary hospitalization~~
 28 ~~provisions of this chapter if he or she is considered clinically~~
 29 ~~suitable for hospitalization by the hospital director.~~



1 Sec. 427. (1) If a peace officer ~~observes an individual~~
 2 ~~conducting himself or herself in a manner that causes the peace~~
 3 ~~officer~~ **has reasonable cause** to ~~reasonably believe that the an~~
 4 individual is a person requiring treatment, the peace officer may
 5 take the individual into protective custody and transport the
 6 individual to a preadmission screening unit designated by a
 7 community mental health services program for examination under
 8 section 429 or for mental health intervention services. The
 9 preadmission screening unit shall provide ~~those the~~ mental health
 10 intervention services that it considers appropriate or shall
 11 provide an examination under section 429. The preadmission
 12 screening services may be provided at the site of the preadmission
 13 screening unit or at a site designated by the preadmission
 14 screening unit. Upon arrival at the preadmission screening unit or
 15 site designated by the preadmission screening unit, the peace
 16 officer shall execute a petition for ~~hospitalization treatment~~ of
 17 the individual. ~~As soon as practical, the~~ **The** preadmission
 18 screening unit ~~shall offer to~~ **may** contact ~~an immediate a~~ family
 19 member of the ~~recipient individual in an emergency situation or for~~
 20 **continuity of care** to ~~let inform~~ the family ~~know member~~ that the
 21 ~~recipient has been taken into the individual is in~~ protective
 22 custody and where ~~he or she the individual~~ is located. The
 23 ~~preadmission screening unit shall honor the recipient's decision as~~
 24 ~~to whether an immediate family member is to be contacted and shall~~
 25 ~~document that decision in the recipient's record.~~ In the course of
 26 providing services, the preadmission screening unit may provide
 27 advice and consultation to the peace officer ~~, which that~~ may
 28 include a recommendation to release the individual from protective
 29 custody. In all cases where a peace officer ~~has executed~~ **executes** a

petition, the preadmission screening unit shall ensure that ~~an~~
~~examination is conducted by~~ a physician or licensed psychologist
examines the individual. The preadmission screening unit shall
 ensure **the** provision of follow-up counseling and diagnostic and
 referral services, if needed, if it is determined under section 429
 that the ~~person~~**individual** does not meet the requirements for
 hospitalization.

(2) A peace officer is not financially responsible for the
 cost of care of an individual for whom ~~a~~**the** peace officer ~~has~~
~~executed~~**executes** a petition under subsection (1).

(3) A hospital receiving an individual under subsection (1)
 who ~~has been~~**is** referred by a community mental health services
 program's preadmission screening unit shall notify that
preadmission screening unit of the results of ~~an~~**the hospital's**
 examination of ~~that~~**the** individual. ~~conducted by the hospital.~~

Sec. 430. **(1)** If a patient is hospitalized under section 423,
a psychiatrist shall examine the patient ~~shall be examined by a~~
~~psychiatrist~~ as soon after hospitalization as is practicable, but
 not later than 24 hours, excluding legal holidays, after
 hospitalization. The examining psychiatrist ~~shall~~**must** not be the
 same physician ~~upon~~**on** whose clinical certificate the patient was
 hospitalized. If the **examining** psychiatrist does not certify that
 the patient is a person requiring treatment, the patient ~~shall~~**must**
 be released immediately. If the **examining** psychiatrist ~~does~~**certify**
certifies that the patient is a person requiring treatment,
including a person requiring treatment in the form of
hospitalization, the patient's hospitalization may continue pending
 hearings convened ~~pursuant to~~**under** sections 451 to 465. **If the**
examining psychiatrist certifies that the patient is a person



1 requiring treatment in the form of assisted outpatient treatment, a
 2 referral must be made to the community mental health services
 3 program serving the community where the patient resides or other
 4 entity as designated by the department and hearings may be convened
 5 under sections 451 to 465.

6 (2) If a patient is hospitalized under section 427 and the
 7 examining physician or psychologist determines that the patient is
 8 a person requiring treatment in the form of assisted outpatient
 9 treatment, a referral must be made to the community mental health
 10 services program serving the community where the patient resides or
 11 other entity as designated by the department and hearings may be
 12 convened under sections 451 to 465.

13 Sec. 461. (1) ~~An~~ For a petition filed under section 434(1) to
 14 (6), an individual may not be found to require treatment unless at
 15 least 1 physician or licensed psychologist who has personally
 16 examined that individual testifies in person or by written
 17 deposition at the hearing.

18 (2) For a petition filed under section 434(7), ~~that does not~~
 19 ~~seek hospitalization before the hearing, an individual may not be~~
 20 ~~found to require treatment unless a psychiatrist who has personally~~
 21 ~~examined that individual testifies. A psychiatrist's testimony is~~
 22 ~~not necessary if a psychiatrist signs the petition. If a~~
 23 ~~psychiatrist signs the petition, at least 1 physician or licensed~~
 24 ~~psychologist who has personally examined that individual must~~
 25 ~~testify. The requirement for testimony may be waived by the subject~~
 26 ~~of the petition. If the testimony given in person is waived, a~~
 27 ~~clinical certificate completed by a physician, licensed~~
 28 ~~psychologist, or psychiatrist must be presented to the court before~~
 29 ~~or at the initial hearing.~~ an individual may be found to require



1 treatment if both of the following apply:

2 (a) Except as otherwise provided in this subdivision, a
3 physician, psychologist, or qualified health professional
4 personally examines the individual and testifies that the
5 individual requires treatment. The subject of the petition may
6 waive the requirement for testimony.

7 (b) Except as otherwise provided in this subdivision, evidence
8 is presented that the physician, psychologist, or qualified health
9 professional who examined the individual under subdivision (a)
10 discussed the examination findings and the treatment plan for the
11 individual with a psychiatrist before trial. This subdivision does
12 not apply to a psychiatrist.

13 (3) ~~The examinations required under this section for a~~
14 ~~petition filed under section 434(7) shall be arranged by the court~~
15 ~~and the local community mental health services program or other~~
16 ~~entity as designated by the department~~ **shall arrange the**
17 **examinations required under this section for a petition filed under**
18 **section 434(7).**

19 (4) A written deposition may be introduced as evidence at the
20 hearing only if the attorney for the subject of the petition was
21 given the opportunity to be present during the taking of the
22 deposition and to cross-examine the deponent. ~~This testimony or~~
23 ~~deposition may be waived by the subject of a petition. An~~
24 ~~individual may be found to require treatment even if the petitioner~~
25 ~~does not testify, as long as there is competent evidence from which~~
26 ~~the relevant criteria in section 401 can be established.~~

27 (5) As used in this section:

28 (a) "Psychiatric nurse practitioner" means an individual who
29 is licensed as a registered professional nurse under part 172 of



1 the public health code, 1978 PA 368, MCL 333.17201 to 333.17242,
 2 who has been granted a specialty certification as a nurse
 3 practitioner by the Michigan board of nursing under section 17210
 4 of the public health code, 1978 PA 368, MCL 333.17210, and who has
 5 training in the area of mental health.

6 (b) "Qualified health professional" means an individual who
 7 meets both of the following:

8 (i) Is a psychiatric nurse practitioner who is acting under the
 9 delegation of a psychiatrist under section 16215 of the public
 10 health code, 1978 PA 368, MCL 333.16215, or a physician's assistant
 11 who is acting pursuant to a practice agreement with a psychiatrist
 12 under article 15 of the public health code, 1978 PA 368, MCL
 13 333.16101 to 333.18838.

14 (ii) Has completed at least 1,000 practice hours in the mental
 15 health field.

16 Sec. 468. (1) For a petition filed under section 434, if the
 17 court finds that an individual is not a person requiring treatment,
 18 the court shall enter a finding to that effect and, if the ~~person~~
 19 ~~has been~~ **individual is** hospitalized before the hearing, shall order
 20 that the ~~person~~ **individual** be discharged immediately.

21 (2) For a petition filed under section 434, if **the court finds**
 22 **that** an individual is ~~found to be~~ a person requiring treatment, the
 23 court shall do 1 of the following:

24 (a) Order the individual hospitalized in a hospital
 25 recommended by the community mental health services program or
 26 other entity as designated by the department.

27 (b) Order the individual hospitalized in a private or ~~veterans~~
 28 ~~administration~~ **Veterans Administration** hospital at the request of
 29 the individual or ~~his or her~~ **the individual's** family, if private or



1 federal funds ~~are to~~ **will** be utilized and if the hospital agrees.
2 If the individual is hospitalized in a private or Veterans
3 Administration hospital under this subdivision, ~~any a~~ financial
4 obligation for the hospitalization ~~shall~~ **must** be satisfied from
5 funding sources other than the community mental health services
6 program, the department, or other state or county funding.

7 (c) Order the individual to undergo a program of combined
8 hospitalization and assisted outpatient treatment, as recommended
9 by the community mental health services program or other entity as
10 designated by the department.

11 (d) ~~Order~~ **Except as otherwise provided in this subdivision,**
12 **order** the individual to receive assisted outpatient treatment
13 through a community mental health services program ~~or~~ or other
14 entity as designated by the department, capable of providing the
15 necessary treatment and services to ~~assist~~ **help** the individual ~~to~~
16 live and function in the community. ~~as specified in the order. The~~
17 **Subject to subsections (3) and (6), the community mental health**
18 **services program or other entity as designated by the department as**
19 **described in this subdivision shall have the discretion to make**
20 **decisions regarding the assessment, treatment, and discharge of an**
21 **individual receiving assisted outpatient treatment. This includes**
22 **the type, scope, frequency, intensity, and duration of the**
23 **treatment of the individual receiving assisted outpatient**
24 **treatment. If the community mental health services program or other**
25 **entity as designated by the department does not communicate with**
26 **the court regarding the treatment of the individual receiving**
27 **assisted outpatient treatment, the court shall hold a hearing**
28 **regarding the treatment provided to the individual receiving**
29 **assisted outpatient treatment by the community mental health**



1 **services program or other entity as designated by the department.**

2 **Except as otherwise provided in this subdivision, the court order**

3 may include a case management plan and case management services and
4 1 or more of the following:

5 (i) Medication.

6 (ii) Blood or urinalysis tests to determine compliance with or
7 effectiveness of prescribed medication.

8 (iii) Individual or group therapy, or both.

9 (iv) Day or partial day programs.

10 (v) Educational or vocational training.

11 (vi) Supervised living.

12 (vii) Assertive community treatment team services.

13 (viii) Substance use disorder treatment.

14 (ix) Substance use disorder testing for individuals with a
15 history of alcohol or substance use and for whom ~~that~~ **the** testing
16 is necessary to assist the court in ordering treatment designed to
17 prevent deterioration. A court order for substance use testing is
18 subject to **a** review hearing once every 180 days.

19 (x) ~~Any other~~ **Other** services ~~prescribed~~ to treat the
20 individual's mental illness and either ~~to assist~~ **help** the
21 individual ~~in living and functioning~~ **live and function** in the
22 community or ~~to help~~ prevent a relapse or deterioration. ~~that may~~
23 ~~reasonably be predicted to result in suicide or the need for~~
24 ~~hospitalization.~~

25 (3) In developing an assisted outpatient treatment plan, a
26 psychiatrist shall supervise the preparation and implementation of
27 the assisted outpatient treatment plan. The assisted outpatient
28 treatment plan ~~shall~~ **must** be completed ~~within~~ **not later than** 30
29 days after entry of the court's order ~~of~~ **for** assisted outpatient



1 treatment and a ~~copy shall~~ **certificate of completion of the**
 2 **assisted outpatient treatment plan must** be forwarded to the probate
 3 court for filing ~~within not later than~~ 3 days after completion of
 4 the plan to be maintained in the court file.

5 (4) In developing an **order for** assisted outpatient treatment,
 6 ~~order,~~ the court shall consider ~~any a~~ preference or medication
 7 experience reported by the individual or ~~his or her~~ **the**
 8 **individual's** designated representative, whether ~~or not~~ the
 9 individual has an existing individual plan of services under
 10 section 712, and ~~any direction included in a~~ **directions in an**
 11 **existing** durable power of attorney or advance directive. ~~that~~
 12 ~~exists.~~

13 (5) Before an order ~~of~~ **for** assisted outpatient treatment
 14 expires, if the individual has not ~~previously~~ designated a patient
 15 advocate or executed a durable power of attorney or an advance
 16 directive, the responsible community mental health services program
 17 or other entity as designated by the department shall ascertain
 18 whether the individual desires to establish a durable power of
 19 attorney or an advance directive. If so, the community mental
 20 health services program or other entity as designated by the
 21 department shall direct the individual to the appropriate community
 22 resource for assistance in developing a durable power of attorney
 23 or an advance directive.

24 (6) If an order for assisted outpatient treatment conflicts
 25 with the provisions of an existing durable power of attorney,
 26 advance directive, or individual plan of services developed under
 27 section 712, the **order for** assisted outpatient treatment ~~order~~
 28 ~~shall~~ **must** be reviewed for possible adjustment by a psychiatrist
 29 not previously involved with developing the **order for** assisted



1 outpatient treatment. ~~order.~~ If an order for assisted outpatient
 2 treatment conflicts with the provisions of an existing advance
 3 directive, durable power of attorney, or individual plan of
 4 services developed under section 712, the court shall state the
 5 court's findings on the record or in writing if the court takes the
 6 matter under advisement, including the reason for the conflict.

7 Sec. 472a. (1) Upon the filing of a petition under section 434
 8 and a finding that an individual is a person requiring treatment,
 9 the court shall issue an initial order ~~of~~**for** involuntary mental
 10 health treatment that ~~shall~~**must** be limited in duration as follows:

11 (a) An initial order ~~of~~**for** hospitalization ~~shall~~**must** not
 12 exceed 60 days.

13 (b) An initial order ~~of~~**for** assisted outpatient treatment
 14 ~~shall~~**must** not exceed 180 days.

15 (c) An initial order ~~of~~**for** combined hospitalization and
 16 assisted outpatient treatment ~~shall~~**must** not exceed 180 days. The
 17 hospitalization portion of the initial order ~~shall~~**must** not exceed
 18 60 days.

19 (2) Upon the receipt of a petition under section 473 before
 20 the expiration of an initial order under subsection (1) and a
 21 finding that the individual continues to be a person requiring
 22 treatment, the court shall issue a second order for involuntary
 23 mental health treatment that ~~shall~~**must be limited in duration as**
 24 **follows:**

25 (a) **A second order for hospitalization must** not exceed 90
 26 days.

27 (b) **A second order for assisted outpatient treatment must not**
 28 **exceed 1 year.**

29 (c) **A second order for combined hospitalization and assisted**



1 **outpatient treatment must not exceed 1 year. The hospitalization**
 2 **portion of the second order must not exceed 90 days.**

3 (3) Upon the receipt of a petition under section 473 before
 4 the expiration of a second order under subsection (2) and a finding
 5 that the individual continues to be a person requiring treatment,
 6 the court shall issue a continuing order for involuntary mental
 7 health treatment that ~~shall~~ **must be limited in duration as follows:**

8 (a) **A continuing order for hospitalization must** not exceed 1
 9 year.

10 (b) **A continuing order for assisted outpatient treatment must**
 11 **not exceed 1 year.**

12 (c) **A continuing order for combined hospitalization and**
 13 **assisted outpatient treatment must not exceed 1 year.**

14 (4) Upon the receipt of a petition under section 473 before
 15 the expiration of a continuing order ~~of~~ **for** involuntary mental
 16 health treatment, including a continuing order issued under section
 17 485a or a 1-year order ~~of~~ **for** hospitalization issued under former
 18 section 472, and a finding that the individual continues to be a
 19 person requiring treatment, the court shall issue another
 20 continuing order for involuntary mental health treatment ~~as~~
 21 ~~provided in~~ **under** subsection (3) for a period not to exceed 1 year.
 22 The court shall continue to issue consecutive 1-year continuing
 23 orders for involuntary mental health treatment under this section
 24 until a continuing order expires without a petition having been
 25 filed under section 473 or the court finds that the individual is
 26 not a person requiring treatment.

27 (5) If a petition for an order ~~of~~ **for** involuntary mental
 28 health treatment is not brought under section 473 at least 14 days
 29 before the expiration of an order ~~of~~ **for** involuntary mental health



1 treatment ~~as described in~~ **under** subsections (2) to (4), ~~a person an~~
 2 **individual** who believes that ~~an another~~ individual continues to be
 3 a person requiring treatment may ~~file a~~ petition, under section
 4 434, for an initial order ~~of~~ **for** involuntary mental health
 5 treatment ~~as described in~~ **under** subsection (1).

6 Sec. 473. **(1)** ~~Not less than 14 days~~ **Except as otherwise**
 7 **provided in this section**, before the expiration of an initial,
 8 second, or continuing order ~~of~~ **for** involuntary mental health
 9 treatment issued under section 472a or section 485a, a hospital
 10 director, ~~or an agency, or mental health professional~~ **physician,**
 11 **psychologist, or qualified health professional** supervising an
 12 individual's assisted outpatient treatment shall file a petition
 13 for a second or continuing order ~~of~~ **for** involuntary mental health
 14 treatment if the hospital director or supervisor believes the
 15 individual continues to be a person requiring treatment and that
 16 the individual is likely to refuse treatment on a voluntary basis
 17 when the order expires. The petition ~~shall~~ **must** contain a statement
 18 setting forth the reasons for the ~~hospital director's or~~
 19 ~~supervisor's or their joint~~ determination that the individual
 20 continues to be a person requiring treatment, a statement
 21 describing the treatment program provided to the individual, the
 22 results of that ~~course of treatment~~ **, program**, and a clinical
 23 estimate ~~as to~~ **of** the time further treatment will be required. The
 24 petition ~~shall~~ **for an individual who is hospitalized must** be
 25 accompanied by ~~a~~ **both of the following**:

26 **(a)** A clinical certificate executed by a
 27 ~~psychiatrist~~ **physician, psychologist, or qualified health**
 28 **professional.**

29 **(b)** **Except as otherwise provided in this subdivision, evidence**



1 that the physician, psychologist, or qualified health professional
2 who executed the clinical certificate under subdivision (a)
3 examined the individual subject to the petition and discussed the
4 examination findings and the treatment program for the individual
5 with a psychiatrist during or immediately after the examination.
6 This subdivision does not apply to a psychiatrist.

7 (2) Before the expiration of an initial, second, or continuing
8 order for assisted outpatient treatment issued under section 472a,
9 a hospital director, agency, physician, psychologist, or qualified
10 health professional supervising an individual's assisted outpatient
11 treatment, or an individual 18 years of age or older, may file a
12 petition for a second or continuing order for involuntary mental
13 health treatment if the individual continues to be a person
14 requiring treatment and the individual is likely to refuse
15 treatment on a voluntary basis when the order expires. The petition
16 must contain a statement setting forth the reason for the
17 determination that the individual continues to be a person
18 requiring treatment, a statement describing the treatment program
19 provided to the individual, the results of that treatment program,
20 and a clinical estimate of the time further treatment will be
21 required. The petition for an individual who is hospitalized must
22 be accompanied by both of the following:

23 (a) A clinical certificate executed by a physician,
24 psychologist, or qualified health professional.

25 (b) Except as otherwise provided in this subdivision, evidence
26 that the physician, psychologist, or qualified health professional
27 who executed the clinical certificate under subdivision (a)
28 examined the individual subject to the petition and discussed the
29 examination findings and the treatment program for the individual



1 with a psychiatrist during or immediately after the examination.
2 This subdivision does not apply to a psychiatrist.

3 (3) If an individual is subject to an order for involuntary
4 mental health treatment issued under section 472a or 485a, and a
5 petition for a second or continuing order for involuntary health
6 treatment is filed, the current order for involuntary health
7 treatment shall remain in full force and effect until the pending
8 petition is resolved.

9 (4) As used in this section:

10 (a) "Psychiatric nurse practitioner" means an individual who
11 is licensed as a registered professional nurse under part 172 of
12 the public health code, 1978 PA 368, MCL 333.17201 to 333.17242,
13 who has been granted a specialty certification as a nurse
14 practitioner by the Michigan board of nursing under section 17210
15 of the public health code, 1978 PA 368, MCL 333.17210, and who has
16 training in the area of mental health.

17 (b) "Qualified health professional" means an individual who
18 meets both the following:

19 (i) Is a psychiatric nurse practitioner who is acting under the
20 delegation and supervision of a psychiatrist under section 16215 of
21 the public health code, 1978 PA 368, MCL 333.16215, or a
22 physician's assistant who is acting under the supervision of, and
23 pursuant to a practice agreement with, a psychiatrist under article
24 15 of the public health code, 1978 PA 368, MCL 333.16101 to
25 333.18838.

26 (ii) Has completed at least 1,000 practice hours in the mental
27 health field.

28 Sec. 475. (1) During the period of an order for assisted
29 outpatient treatment or combined hospitalization and assisted



1 outpatient treatment, if the agency or mental health professional
 2 who is supervising an individual's assisted outpatient treatment
 3 program determines that the individual is not complying with the
 4 court order or that the assisted outpatient treatment has not been
 5 or will not be sufficient to prevent harm that the individual may
 6 inflict on ~~himself or herself~~ **the individual's self** or ~~upon~~ others,
 7 then the supervising agency or mental health professional shall
 8 notify the court immediately. If the individual believes that the
 9 assisted outpatient treatment program is not appropriate, the
 10 individual may notify the court of that fact.

11 (2) If it comes to the attention of the court that an
 12 individual subject to an order ~~of~~ **for** assisted outpatient treatment
 13 or combined hospitalization and assisted outpatient treatment is
 14 not complying with the order, that the assisted outpatient
 15 treatment has not been or will not be sufficient to prevent harm to
 16 the ~~individual or to~~ **individual's self or** others, or that the
 17 individual believes that the assisted outpatient treatment program
 18 is not appropriate, the court may do ~~either~~ **any** of the following
 19 without a hearing and based ~~upon~~ **on** the record and other available
 20 information:

21 (a) Consider ~~other~~ alternatives to hospitalization and modify
 22 the order to direct the individual to undergo another program of
 23 assisted outpatient treatment for the ~~duration of the order.~~ **order's**
 24 **duration.**

25 (b) Modify the order to direct the individual to undergo
 26 hospitalization or combined hospitalization and assisted outpatient
 27 treatment. The duration of the hospitalization, including the
 28 number of days the individual has already been hospitalized if the
 29 order being modified is a combined order, ~~shall~~ **must** not exceed 60



1 days for an initial order or 90 days for a second or continuing
 2 order. The modified order may provide that if the individual
 3 refuses to comply with the psychiatrist's order to return to the
 4 hospital, a peace officer shall take the individual into protective
 5 custody and transport the individual to ~~the~~ **a particular** hospital.
 6 ~~selected.~~

7 **(c) Convene a status conference with the supervising agency**
 8 **and the individual to review the individual's compliance with the**
 9 **order.**

10 ~~(3) During the period of an order for assisted outpatient~~
 11 ~~treatment or a combination of hospitalization and assisted~~
 12 ~~outpatient treatment, if the agency or mental health professional~~
 13 ~~who is supervising an individual's assisted outpatient treatment~~
 14 ~~determines that the individual is not complying with the court~~
 15 ~~order, the supervising agency or mental health professional shall~~
 16 ~~notify the court immediately.~~

17 ~~(4) If it comes to the attention of the court that an~~
 18 ~~individual subject to an order of assisted outpatient treatment or~~
 19 ~~a combination of hospitalization and assisted outpatient treatment~~
 20 ~~is not complying with the order, the court may require 1 or more of~~
 21 ~~the following, without a hearing:~~

22 **(d) ~~(a) That~~ Require that** the individual be taken to the
 23 preadmission screening unit established by the community mental
 24 health services program serving the community in which the
 25 individual resides.

26 ~~(b) That the individual be hospitalized for a period of not~~
 27 ~~more than 10 days.~~

28 **(e) ~~(c) Upon~~ On the** recommendation ~~by~~ **of** the community mental
 29 health services program serving the community in which the



1 individual resides, **require** that the individual be hospitalized for
2 a period of more than 10 days, but not longer than the duration of
3 the order for assisted outpatient treatment or a combination of
4 hospitalization and assisted outpatient treatment, or not longer
5 than 90 days, whichever is less.

6 **(3)** ~~(5)~~—The court may direct peace officers to transport the
7 individual to a designated facility or a preadmission screening
8 unit, ~~as applicable,~~ and the court may specify **the** conditions under
9 which the individual may return to assisted outpatient treatment
10 before the order expires.

11 **(4)** ~~(6)~~—An individual hospitalized without a hearing ~~as~~
12 ~~provided in—~~**under** subsection ~~(4)—~~**(2)** may object to the
13 hospitalization according to the provisions of section 475a.